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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

AMERICAN EXPRESS NATIONAL BANK,

Plaintiff,

v.

MYRNA MILANO, an individual,

Defendant.

Case No. 24CV454785

**ORDER REGARDING MOTION TO SET
ASIDE DEFAULT AND DEFAULT
JUDGMENT**

Defendant Myrna Milano's motion to set aside default and default judgment came on for hearing before the Court on September 4, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on September 3, 2025.

Plaintiff filed this lawsuit on December 23, 2024 seeking \$10,169.80 in damages. Plaintiff filed a proof of service with the Court on January 8, 2025 which states Defendant was personally served with the summons and complaint on January 8, 2025. Under Evidence code section 647, a registered process server's declaration of service establishes a presumption that the facts stated in the declaration are true. (*Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 750.) Defendant does not dispute this service.

Default was entered against Defendant on May 13, 2025, and a clerk's judgment for \$9,215.80 in damages and \$442.61 in costs was entered against Defendant on May 16, 2025.

Defendant seeks to have the default and default judgment set aside on the basis of inadvertence, surprise, or excusable neglect.

Pursuant to Code of Civil Procedure section 473(b), “[t]he court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.”

Defendant’s motion was filed on July 29, 2025, just months after default and default judgment were entered against her, thus the motion is timely. Defendant does not attach a proposed answer or argue that she has valid defenses to the claim. Instead, Defendant argues:

After the filing of the Complaint and service of process on Defendant, and on February 8, 2025, Plaintiff and Defendant negotiated a settlement amount of \$7,632 00 to be paid in monthly installments of \$318.00. Defendant has been paying regularly and timely for three (3) months. There should not have been a request for default judgment as the parties have already settled the matter. Plaintiff should have filed a NOTICE OF SETTLEMENT instead of filing a request for default judgment.

For the aforementioned reasons, Defendant requests set aside of the default, and if applicable default judgment entered against her and that order the Plaintiff to file a NOTICE OF SETTLEMENT.

Plaintiff argues Defendant never returned the signed stipulation regarding settlement and did not file an answer, obtain a fee waiver, or pay the court’s first appearance fee as required in the first paragraph of that stipulation, which permits Plaintiff to continue with litigation even if Defendant

is making payments where those steps are not taken. Defendant responds that the correct stipulation was never sent to her.

The Court carefully studied the parties' submissions, including the attachments to Defendant's reply. Those attachments repeatedly inform Defendant that if the stipulation is not signed, default could be entered. Defendant also makes clear that she will not sign a document she believed to be wrong—even after being counseled by the debt collector to arrange to make the payments according to the schedule in the stipulation by saving and to sign it to avoid default.

In sum, the Court does not see a basis to set aside default or default judgment on this record—even if Defendant has been making payments. Defendant did not actually enter the settlement agreement and, in fact, disputed the settlement terms. Defendant does not include a proposed answer with her motion as required by statute and admits that she owes the debt.

Defendant's motion is accordingly DENIED.

IT IS SO ORDERED.

Date: _____

Hon. Evette D. Pennypacker
Santa Clara Superior Court Judge

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SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

DISH WIRELESS L.L.C.,

Petitioner,

v.

ADVANCED WIRELESS & LOGISTICS,

Respondent.

Case No. 24CV454855

**ORDER GRANTING MOTION FOR
ATTORNEYS' FEES**

Petitioner DISH Wireless L.L.C.'s motion for \$8,808.08 in attorneys' fees pursuant to Civil Code section 8488 came on for hearing before the Court on September 4, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on September 3, 2025, 2025.

In an action to release property from a mechanics lien, Civil Code section 8488 (c) provides that "[t]he prevailing party is entitled to reasonable attorney's fees." Here, DISH obtained an order releasing property from a mechanics lien on May 1, 2025. DISH is plainly the prevailing party. DISH now seeks \$8080.08 in attorneys' fees.

A notice of motion with this hearing date and time was served on Respondent's agent for service of process by U.S. mail on May 8, 2025. Defendant failed to file an opposition. "[T]he failure to file an opposition creates an inference that the motion [] is meritorious." (*Sexton v. Super Ct.* (1997) 58 Cal.App.4th 1403, 1410.)

This case was leanly staffed, and the chart of charges reflect an effort to efficiently use resources and leverage work in related cases. Thus, the Court finds the hours billed reasonable. The